

**CHAPTER viii.**

An Act to extend the time limited for the repayment of money borrowed under the authority of the City of Dublin Steam Packet Company's Act 1895 and to make other provisions in relation thereto to enable the City of Dublin Steam Packet Company to borrow further moneys and for other purposes.

A.D. 1916.

[25th May 1916.]

WHEREAS in or about the year one thousand eight hundred and twenty-eight a company or co-partnership known as the City of Dublin Steam Packet Company (hereinafter called "the Company") was formed under a deed of settlement dated the first day of January one thousand eight hundred and twenty-eight for the purpose amongst other things of trading by means of steam vessels between the ports of Dublin and Liverpool and other places and by the City of Dublin Steam Packet Company's Act 1860 the Company were incorporated as from the twenty-fourth day of July one thousand eight hundred and thirty-three with perpetual succession:

And whereas under the powers of the Improved Postal and Passenger Communication between England and Ireland Act 1855 and other powers of the Company facilities for postal passenger and parcel traffic between England and Ireland were provided so far as regards the transit of the channel between Holyhead and Kingstown by the Company and the steam vessels belonging to them and the mails have for many years been carried between those ports by the Company:

And whereas by the City of Dublin Steam Packet Company's Act 1895 (hereinafter called "the Act of 1895") it is amongst

A.D. 1916. — other things recited that a new postal contract for the conveyance of the mails between Holyhead and Kingstown had been or was about to be entered into between the Postmaster-General and the Company for a period of twenty years or until such contract should be thereafter terminated as therein provided and that for the performance of such contract the Company were under obligation to provide new steam vessels of great speed and capacity :

And whereas by section 7 of the Act of 1895 the Company were authorised from time to time to borrow on mortgage of their undertaking any sum or sums of money not exceeding in the whole four hundred thousand pounds and it was provided that all moneys so borrowed should be repaid by the Company within a period not exceeding twenty years from the commencement of the said contract and should be applied to purposes relating to the said contract and to the carrying of the same into effect to which capital was properly applicable and to no other purpose :

And whereas by section 8 of the Act of 1895 the mortgagees of the Company were empowered to enforce payment of the principal and interest secured by their mortgages by the appointment of a receiver :

And whereas by section 10 of the Act of 1895 the Company were required after they should have borrowed any money under the powers of that Act out of each quarterly payment received by them under the said contract or out of other moneys belonging to them to set apart such a sum by way of a sinking fund to be applied in the repayment of the money so borrowed as when accumulated at compound interest at the rate of three pounds per centum per annum would at the time when such money would be repayable be sufficient to repay the money so borrowed and by that section it was further provided that such sinking fund and the interest arising therefrom should from time to time until so applied be invested in securities authorised by law for the investment of trust funds :

And whereas the said contract was in fact entered into before the passing of the Act of 1895 and the period limited by that Act for the repayment of money borrowed under the authority thereof will expire on the thirty-first day of March one thousand nine hundred and seventeen :

And whereas under the powers of the Act of 1895 the Company have borrowed a sum of three hundred and fifty thousand pounds : A.D. 1916.

And whereas by a certain indenture dated the second day of December one thousand eight hundred and ninety-five made between the Company of the one part and certain trustees for the mortgagees of the Company of the other part the Company assigned and conveyed unto the trustees the undertaking of the Company together with the lands tenements and hereditaments therein described and all tolls or sums of money arising out of or derived from the undertaking and all the estate right title and interest of the Company in the same for the better securing the repayment of the sum of three hundred thousand pounds then already borrowed by the Company and also the further sum of one hundred thousand pounds if borrowed under the powers of the Act of 1895 together with interest at the rate of three pounds ten shillings per centum per annum and by the said indenture the Company covenanted to repay the principal sum borrowed under the authority of the said Act on the first day of June one thousand nine hundred and sixteen :

And whereas the Company have from time to time purchased or redeemed certain of the mortgages or debentures granted or created by the Company under the powers of the Act of 1895 and have complied in all respects with the provisions of section 10 of the Act of 1895 with regard to the payments into the sinking fund thereby required to be made and such sinking fund together with the interest thereon have been invested in trustee securities as required by that section :

And whereas in consequence of the present war the securities of which the said sinking fund consists have greatly depreciated in value and such securities could not now be realised except at a very heavy loss to the Company and it is therefore expedient to extend the time provided and limited by the said indenture of the second day of December one thousand eight hundred and ninety-five and by section 7 of the Act of 1895 for the repayment of the money borrowed under that Act and secured by the said indenture and to provide for payment by the Company to their mortgagees during such extended period of interest at a higher rate than that secured by the said indenture :

A.D. 1916
—

And whereas it is expedient to make such provisions with regard to the said sinking fund as are contained in this Act:

And whereas the Bill for this Act was assented to at a meeting of the mortgagees of the Company called by the trustees of the said indenture of the second day of December one thousand eight hundred and ninety-five by circular addressed to each of such mortgagees and held on the twenty-eighth day of January one thousand nine hundred and sixteen:

And whereas it is expedient to confer upon the Company further borrowing powers for purposes connected with the said postal contract or any other contract between the Postmaster-General and the Company relating to the carriage of mails between England and Ireland:

And whereas the purposes aforesaid cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

Short title.

1. This Act may be cited for all purposes as the City of Dublin Steam Packet Company's Act 1916.

Interpreta-
tion.

2. In this Act—

The expression "the Company" means the City of Dublin Steam Packet Company;

The expression "the contract" means the contract referred to in section 7 of the Act of 1895 dated the first day of July one thousand eight hundred and ninety-five entered into between the Postmaster-General and the Company for the carriage of mails between Holyhead and Kingstown and vice versa;

The expression "the Act of 1895" means the City of Dublin Steam Packet Company's Act 1895;

The expression "the trust deed" means the indenture dated the second day of December one thousand eight hundred and ninety-five made between the Company of the one part and Jonathan Hogg Charles E. Martin and William Watson of the other part.

3.—(1) Notwithstanding anything contained in the Act of 1895 or in the trust deed or in any mortgage debenture or other security before the passing of this Act granted or created by the Company for the purpose of securing money borrowed under the authority of the Act of 1895 the Company shall not be bound to repay the whole or any part of any money so borrowed until the expiration of five years from the first day of June one thousand nine hundred and sixteen. Provided that notwithstanding the foregoing the Company shall be at liberty during the period aforesaid by means of the sinking fund provided by the Company pursuant to section 10 of the Act of 1895 or out of other funds of the Company available for the purpose to repay or redeem any such mortgage debenture or other security as aforesaid upon giving to the holder thereof six months' previous notice in writing of their intention so to do.

A.D. 1916.
 Extension
 of time for
 repayment of
 borrowed
 money.

(2) As from the first day of June one thousand nine hundred and sixteen the Company shall pay to the holders of mortgages debentures or other securities granted or created by the Company prior to the seventeenth day of December one thousand nine hundred and fifteen and subsisting at the first day of June one thousand nine hundred and sixteen for securing money borrowed under the authority of the Act of 1895 interest at the rate of five pounds per centum per annum in lieu of interest at the rate prescribed by the trust deed and such mortgages debentures or other securities as aforesaid until the principal sums secured by such mortgages debentures or other securities have been repaid.

(3) From and after the first day of June one thousand nine hundred and sixteen the Act of 1895 and the trust deed and any mortgage debenture and other security to which the preceding provisions of this section apply shall be read and take effect as if the period prescribed by this Act for the repayment of money borrowed under the authority of the Act of 1895 were the period prescribed and provided by that Act and the trust deed and by any such mortgage debenture or other security for such repayment and as if the rate of interest prescribed by this Act as payable on such money during the period mentioned in subsection (1) of this section were the rate of interest prescribed by the trust deed and any such mortgage debenture or other security.

A.D. 1916.

(4) The unexercised borrowing powers of the Company (amounting to the sum of fifty thousand pounds) under the Act of 1895 shall be and the same are hereby repealed and the Company shall not reborrow any part of the sum of three hundred and fifty thousand pounds borrowed by them under the powers of the Act of 1895 which may have been or shall be paid off or redeemed by them and all mortgages debentures or other securities granted or created by the Company under the powers of the Act of 1895 which may have been or shall be paid off or redeemed by the Company shall be and the same are hereby cancelled.

Provisions as
to sinking
fund.

4.—(1) Notwithstanding the extension of time granted by this Act for the repayment of money borrowed under the authority of the Act of 1895 the Company shall not in respect of such money be required after the first day of April one thousand nine hundred and seventeen to set apart and appropriate for the purposes of the sinking fund provided by the Company pursuant to section 10 of that Act a greater sum than eight thousand pounds in any year and the said sum of eight thousand pounds shall up to and including the first day of June one thousand nine hundred and twenty-one be set apart and appropriated for those purposes by equal quarterly instalments in each year and so in proportion for any less period than a quarter of a year and shall for the purposes of the said section be deemed to be the amount which the Company are by that section directed to set apart and appropriate for that year or part of a year for the purposes of the said sinking fund Provided always that the Company shall continue until and including the first day of April one thousand nine hundred and seventeen to set apart and appropriate for the purposes of the said sinking fund the money required to be set apart and appropriated by the said section 10 for the purposes of the said sinking fund.

(2) Until the payment off and redemption of all mortgages debentures or other securities granted or created by the Company under the authority of the Act of 1895 the Company shall not apply the sinking fund provided by the Company pursuant to the said section 10 of the Act of 1895 and this Act for any other purpose whatever than such payment off and redemption.

5. The Company may for the purposes of the contract or any other contract between the Postmaster-General and the Company relating to the carriage of the mails between England and Ireland borrow on mortgage of their undertaking any sum or sums of money not exceeding in the whole two hundred and fifty thousand pounds and all such moneys shall be repaid by the Company within a period not exceeding twenty years from the date or dates on which the same shall be borrowed and shall be applied for the purposes of the contract or such other contract as aforesaid to which capital is properly applicable and to no other purpose.

A.D. 1916.
Borrowing
powers for
purposes of
postal con-
tracts.

6. Section 8 (Appointment of a receiver) section 9 (Certain provisions of Companies Clauses Acts to apply) section 10 (Sinking fund) and section 11 (Annual statement with respect to sinking fund) of the Act of 1895 shall mutatis mutandis apply to and in respect of any moneys borrowed under the powers conferred by the immediately preceding section of this Act and to the mortgagees of the Company in respect of the moneys so borrowed.

Application
of certain
provisions of
Act of 1895.

7. All mortgages debentures or other securities granted or created by the Company prior to the seventeenth day of December one thousand nine hundred and fifteen in pursuance of the powers of the Act of 1895 and subsisting at the passing of this Act shall during the continuance of such mortgages debentures or other securities have priority over any mortgages debentures or other securities granted or created by the Company after the seventeenth day of December one thousand nine hundred and fifteen by virtue of the Act of 1895 or this Act.

Existing
mortgages
to have
priority.

8. Nothing in this Act shall prejudice or diminish the security of the holders of mortgages debentures or other securities granted or created by the Company before the seventeenth day of December one thousand nine hundred and fifteen and subsisting at the passing of this Act or the rights and priorities of all such mortgages debentures or other securities.

Rights of
holders of
existing
mortgages.

9. Notwithstanding anything in this Act the Company shall not under the powers of this Act raise or borrow any money during the continuance of the present war and twelve months

Restriction
as to raising
money during
war.

A.D. 1916. thereafter unless the consent of the Treasury has been previously obtained.

Costs of Act. **10.** All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

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